

FARIDI v TDS TRUSTEE SERVICES

25CV48053

PLAINTIFF'S MOTION FOR LEAVE TO FILE A SECOND AMENDED COMPLAINT

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Defendant"). Now before the Court is Plaintiff's motion for leave to file a Second Amended Complaint ("SAC.")

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Plaintiff has repeatedly been advised of the need to include this language in all motions before the Court. Most significantly, on April 17, 2026, in a Ruling denying yet another

motion for failure to include the 3.3.7 language, the Court expressly put Plaintiff on notice that any future failures to include the mandatory language would result in denial(s) With prejudice; a point reiterated directly to plaintiff when he appeared that morning for oral argument. Plaintiff's inexplicable continued failure to follow Local Rules and Court Orders borders on contemptuous behavior and gives rise to the disentitlement doctrine negating any claim for Court relief. Accordingly, the motion is **DENIED, WITH prejudice.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

NICHOLAS v LEMP

25CV48280

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT; PLAINTIFF'S MOTION FOR DETERMINATION OF VALIDITY AND ENFORCEABILITY OF 10/6/21 CONTRACT TO MAKE A WILL/DEVISE; PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

These matters involve real property disputes between Danny E. Nicholas ("Plaintiff") and Lani Arellanes ("Arellanes") and Cathy Lemp ("Lemp.") On

Now before the Court are multiple motions: 1) Plaintiff's motion for leave to file a First Amended Complaint, 2) Plaintiff's motion for summary adjudication; and 3) Plaintiff's motion to determine the validity of contract/will.

I. Background Facts¹

In or around October 24, 2021, Plaintiff entered into an agreement with Lani Arellanes (now deceased) which appears to have been memorialized in a handwritten document prepared and signed by Arellanes ("Agreement") (Petition to Void TOD, Ex. 1.) Pursuant to this Agreement, Plaintiff would build a 3-bedroom home for Arellanes on her property located at 2608 Arrowhead Street ("Arrowhead Property.") Arellanes would provide all materials and tools. In exchange, Arellanes would give Plaintiff a \$53,000 valued 1.1 acre property located at 2044 Yolo Court ("Yolo Property.")

The Agreement also stated:

Should I become disabled or deceased or unable to complete this project to "occupancy" all properties 2044 Yolo Court and 2608 Arrowhead Street will become the property of Danny E. Nicholas to complete his project at Yolo Court. Neither his children nor mine are entitled to either property.

¹ The necessary facts to understand the pending motions are drawn from both filed cases.